



GRETCHEN WHITMER
GOVERNOR

STATE OF MICHIGAN
DEPARTMENT OF
ENVIRONMENT, GREAT LAKES, AND ENERGY
GAYLORD DISTRICT OFFICE



DANIEL EICHINGER
ACTING DIRECTOR

April 27, 2023

SVN-01351

VIA EMAIL

Jeffrey Dietlin, Director of Utilities
City of Cadillac
200 North Lake Street
Cadillac, Michigan 49601

Dear Jeffrey Dietlin:

SUBJECT: Second Violation Notice
Industrial Pretreatment Program (IPP)
National Pollutant Discharge Elimination System (NPDES)
Permit No. MI0020257

The Department of Environment, Great Lakes, and Energy (EGLE), Water Resources Division (WRD), issued Violation Notice VN-012230 (VN-012230), on September 30, 2021, in response to violations of Part 31, Water Resources Protection, of the Natural Resources and Environmental Protection Act, 1994 PA 451, as amended (NREPA), MCL 324.3101 *et seq.*, and the administrative rules promulgated thereunder being 2006 AACRS R 323.2101 *et seq.*, as amended; and Part 23, Pretreatment, and the administrative rules promulgated pursuant to Part 31, Michigan Administrative Code, R 323.2301 *et seq.* (Part 23 Rules); and Part I(C)(1) of NPDES Permit No. MI0020257 (Permit), which was issued on August 30, 2019, and effective September 1, 2019. The Cadillac WWTP (Publicly Owned Treatment Plant (POTW)) has not returned to compliance.

Item 1 of VN-012230 identified that the POTW had failed to appropriately respond to multiple instances of non-compliance by an Industrial User (IU). VN-012230 noted that the POTW had correctly identified that the IU was in significant non-compliance (SNC) with the IU Permit issued by the POTW and the POTW had failed to respond according to the approved Enforcement Response Plan (ERP) as required by the NPDES Permit and the Part 23 Rules. The approved ERP states that all SNC must be addressed with an enforceable order within 60 days. VN-012230 required that the POTW must take immediate action to bring the IU into compliance, and that the action taken must comply with the approved ERP.

On November 4, 2021, the WRD issued a follow-up to VN-012230 in response to a request for an extension of the response date. Under Item 2 of the follow-up, the WRD stated that the actions required under Item 1 of VN-012230 do not require revisions to the existing approved IPP and that the POTW must respond to non-compliance with the current IU permits as required by the violation notice. The follow-up to VN-012230 also reiterated that any instances of non-compliance with the IU Permits must follow the currently approved ERP.

The violation(s) identified in VN-012230 are continuing. The following violations have been identified since VN-012230 was issued. Review of the IPP Annual Report submitted by the POTW for 2022 show the IUs listed in Table 1, below, were in SNC for the listed violations of their IU Permits during the reporting period. The IPP Annual Report also shows that no enforceable orders were issued by the POTW during the reporting period as is required by the approved ERP when an IU is found to be in SNC. Failure to implement the approved ERP to respond to instances of non-compliance by IUs is a violation of the Part 23 Rules and the NPDES Permit.

Table 1.

Industrial User	SNC Violation Type	SNC Pollutants	Quarters in SNC
AAR Mobility Systems, 6 th Street	Reporting Requirements	Not applicable	Not reported
AAR Mobility Systems, 6 th Street	Pretreatment Standards	Cyanide	Q1 2022 Q2 2022
Cadillac Casting Inc.	Reporting Requirements	Not applicable	Not reported
Cadillac Casting Inc.	Pretreatment Standards	Molybdenum	Q1 2022 Q2 2022 Q3 2022 Q4 2022
Cadillac Casting Inc.	Pretreatment Standards	Silver	Q1 2022
Cadillac Casting Inc.	Pretreatment Standards	Zinc	Q1 2022 Q2 2022
Cadillac Casting Inc.	Pretreatment Standards	Cadmium	Q1 2022 Q2 2022 Q4 2022
Rec Boats Holding – Trailer Division	Reporting Requirements	Not applicable	Not reported
Rec Boats Holding – Trailer Division	Pretreatment Standards	Copper	Q1 2022 Q2 2022 Q3 2022 Q4 2022
Rec Boats Holding – Trailer Division	Pretreatment Standards	Zinc	Q1 2022 Q2 2022 Q3 2022 Q4 2022
Rec Boats Holding – Trailer Division	Pretreatment Standards	Cyanide	Q1 2022 Q2 2022 Q3 2022 Q4 2022

The violations identified in VN-012230 and this Second Violation Notice are violations of Part 31 of the NREPA, the Part 23 Rules, and the NPDES Permit.

Cadillac WWTP shall take immediate action to achieve and maintain compliance with the terms and conditions of Part 31 of the NREPA, the Part 23 Rules, and the NPDES Permit.

Please submit documentation that each of the IUs listed in Table 1 have returned to compliance with both the effluent limits and reporting requirements of their respective IU permits or provide documentation that the POTW has undertaken appropriate enforcement actions, as defined by the approved ERP, to return each of the IUs to compliance with the IU Permits. The same response is also required for any other SIUs that are in SNC as of the first quarter of 2023. Please submit the required documentation to this office via MiEnviro by June 1, 2023. At a minimum, the response shall include:

1. Copies of the current IU Permit for each IU listed in Table 1 and any SIUs that have also been determined to be in SNC as of the end of the first quarter of 2023.
2. A first quarter 2023 compliance status summary for all SIUs.
3. Copies of compliance monitoring data for each IU listed in Table 1 for the first quarter of 2023 and any additional IUs determined to be in SNC for that quarter.
4. Documentation of the compliance actions taken by the POTW for both the IUs listed in Table 1 that have not returned to compliance, and any other SIUs that are in SNC as of the end of the first quarter of 2023.

If you have any factual information you would like to share with us regarding the violations identified in this Second Violation Notice, please provide them with your written response.

Compliance with the terms of this Second Violation Notice does not relieve Cadillac WWTP of any liability, past or present, from the failure to meet the conditions specified in the NPDES Permit or failure to comply with Part 31 of the NREPA or the Part 23 Rules.

The WRD reserves its right to take all necessary and appropriate enforcement actions for all violations observed to date and any violations that occur in the future. This may include civil action seeking fines, enforcement costs, injunctive relief, and potential criminal prosecution.

We anticipate and appreciate your cooperation in resolving this matter. Should you require further information regarding this Second Violation Notice or if you would like to arrange a meeting to discuss it, please contact me at LoweC9@michigan.gov; 989-330-4639; or EGLE, WRD, Gaylord District Office, 2100 West M-32, Gaylord, Michigan 49735-9282

Sincerely,

Claire Lowe

Digitally signed by: Claire Lowe
DN: CN = Claire Lowe email =
LoweC9@michigan.gov C = US O = EGLE
OU = WRD
Date: 2023.04.27 09:35:27 -04'00'

Claire Lowe
Gaylord District Office
Water Resources Division

cc: Brian Jankowski, EGLE
Don Brady, EGLE
Pam Willard, EGLE